

KANSAS BEHAVIORAL SCIENCES REGULATORY BOARD

Eisenhower State Office Building
700 SW Harrison, Suite 420
Topeka, Kansas 66603-3240

In the Matter of)
)
Franklin W. Horbelt,)
LPC, License No. 3816)
)
Licensed Professional)
Counselor.)

Pursuant to (K.S.A. 77-537)

Case No. 19-PC-002

Summary Proceeding Order Modifying Final Order

The above-captioned matter comes before the Kansas Behavioral Sciences Regulatory Board (the "Board") for consideration of whether to continue or end Franklin W. Horbelt's supervised practice period put in place by the Final Order and Protective Order entered by the Board in the above-referenced matter on February 18, 2020. The Presiding Officers who considered this matter were the following Board members: Mary Jones, David Anderson, Jim Kilmartin, Andrea Perdomo-Morales, Cynthia Schendel, Laura Shaughnessy, Donna Hoener-Queal, Jacqueline Lightcap, Jill Flessing and David Stevens. Board members Linda Heitzman-Powell and Richard Nobles were not present.

After reviewing its administrative records, the Board makes the following findings of fact, conclusions of law, and orders.

FINDINGS OF FACT

1. Following an evidentiary hearing in this matter on January 13, 2020, the Board entered the Final Order and Protective Order on February 18, 2020 ("Final Order") which granted a license as a Licensed Professional Counselor, license No. 3816, to Franklin W. Horbelt ("Horbelt") subject to certain terms and conditions.

2. In relevant part, the Final Order imposed a twenty-four (24) month supervised practice period which required one-hour, in-person supervision sessions focusing on decision-making, boundaries, and the ability to recognize personal issues that may influence his professional judgment. The Final Order required both Horbelt's supervisor and employer (if the supervisor is not his employer) to provide written reports to the Board at the end of each three (3) month period of supervision.

3. Paragraph 18(k) of the Final Order provides:

(k) At the end of the supervised practice period, Horbelt's practice supervisor and employer must submit a written report to the Board addressing whether Horbelt poses a risk to the public in the practice of professional counseling without supervision under this Order. If Horbelt's practice supervisor responds unfavorably, the Board may continue Horbelt's licensure as a professional counselor on the above terms and conditions, as well as any other terms and conditions that the Board deems appropriate based upon the practice supervisor's report for an additional twenty-four (24) months or refuse to re-issue a license to Horbelt. If Horbelt's practice supervisor responds favorably, the Board shall license Horbelt as a professional counselor without the terms and conditions imposed herein.

4. On or about November 15, 2023, Horbelt's practice supervisor submitted her final quarterly report to the Board. Therein, the practice supervisor stated that she has no concerns regarding Horbelt working as an independent clinician. Moreover, she relayed that Horbelt is currently working under a clinical training plan and she will remain his supervisor in regard to such training plan for at least another year should any concerns arise. The practice supervisor did not identify any perceived risk to the public through Horbelt's practice of professional counseling without supervision.

5. On or about November 22, 2023, the adult outpatient program manager for Horbelt's employer submitted a final quarterly report to the Board. Therein, the program manager relayed that she is unable to make a determination regarding whether Horbelt poses a risk to the public in the practice of professional counseling without supervision. While expressing concern that Horbelt did not make her aware of the Final Order or underlying felony conviction prior to beginning employment with the program manager's clinic, the program manager, citing a lack of training and expertise to determine potential risk, recommended engagement with a therapeutic professional with experience to determine risk to the public without supervision.

APPLICABLE LAW

6. The Kansas Professional Counselors Licensure Act (the "Act"), K.S.A. 65-5801 *et seq.*, authorizes the Board to issue a Licensed Professional Counselor ("LPC") license to applicants who meet the requirements of the Act. See K.S.A. 65-5804a and K.S.A. 65-5806. Because Applicant is currently licensed as an LPC and pursuant to the terms of the Final Order, the Board has jurisdiction over Applicant and this matter.

7. K.S.A. 65-5809(a)(2) provides in relevant part that the board may refuse to renew a license, may condition, limit, revoke or suspend a license, may publicly or privately censure a licensee or may impose a fine not to exceed \$1,000 per violation upon a finding that a licensee has been convicted of a felony offense and has not demonstrated to the Board's satisfaction that such person has been sufficiently rehabilitated to merit the public trust.

8. Pursuant to K.S.A. 77-537(a) of the Kansas Administrative Procedure Act ("KAPA"), a state agency may use summary proceedings, subject to a party's request for a hearing on the order, if:

- (1) The use of those proceedings in the circumstances does not violate any provision of law;
- (2) the protection of the public interest does not require the state agency to give notice and an opportunity to participate to the persons other than the parties;
- (3) based upon an investigation of the facts by the state agency, beyond receipt of the allegations, the state agency believes in good faith that the allegations will be supported to the applicable standard of proof, provided however that an alleged failure to meet the standard set forth in this subsection shall not be subject to immediate judicial review and shall not invalidate any later agency action that has been supported to the applicable standard of proof; and
- (4) the order does not take effect until after the time for requesting a hearing has expired.

CONCLUSIONS OF LAW

9. The use of summary proceedings pursuant to KAPA is appropriate in this case.

10. Pursuant to paragraph 18(k) of the Final Order, Horbelt's supervisor and employer were to address within their final quarterly report whether Horbelt poses a risk to the public in the practice of professional counseling without supervision under the Final Order.

11. This condition was placed upon Horbelt's license in keeping with the Board's duty to protect the public welfare and safety of Kansans in conjunction with K.S.A. 65-5806 and K.S.A. 65-5809(a)(2).

12. Horbelt's supervisor has provided an opinion that she has no concerns regarding Horbelt working as an independent professional counselor. Horbelt's employer declined to comment regarding whether or not Horbelt posed a risk to the public in the practice of professional counseling.

13. Due to the favorable response by Horbelt's supervisor, the Board finds that removing the terms and conditions imposed by the Final Order upon Horbelt's license is warranted.

14. However, in light of the seriousness of the matters which resulted in the Final Order, the Board cautions and strongly urges Horbelt that he continue to work on the personal issues relating to his sexual felony conviction and the matters which have been the focus of his supervision, to include decision-making, boundaries and the ability to recognize personal issues that may influence his professional judgment. This should include consultation with peers in the professional counseling field as well as engaging with a therapeutic professional with experience addressing the issues relating to Horbelt's sexual felony conviction.

ORDER

After consideration of the above findings of fact and conclusions of law, the Board hereby Orders that supervised practice period imposed by the Final Order and the terms and conditions imposed upon Horbelt's license by the Final Order are hereby lifted. The protective order entered by the Final Order to protect all confidential medical records of Horbelt from disclosure and use outside of this proceeding is not disturbed and shall remain in place.

IT IS SO ORDERED.

Entered this 30th day of January, 2024.

A handwritten signature in black ink, appearing to read 'Mary Jones', is positioned above the printed name.

Mary Jones, Chairperson
Kansas Behavioral Sciences Regulatory Board

NOTICE OF RELIEF FROM SUMMARY PROCEEDING ORDER

In the Matter of Franklin W. Horbelt, Case No. 19-PC-002
Summary Proceeding Order, page 4

Pursuant to K.S.A. 77-537 and 77-542, this Summary Proceeding Order is subject to your request for a hearing. If you desire a hearing, you must direct a written request for hearing to:

David Fye, Executive Director
Behavioral Sciences Regulatory Board
700 SW Harrison St., Suite 420
Topeka, KS 66603

This written request must be filed within eighteen (18) calendar days of the date listed in the Certificate of Service below (15 calendar days plus 3 calendar days for mail service). Pursuant to K.S.A. 77-503(c), the 18-day period begins the day after the date shown in Certificate of Service below and includes weekends and legal holidays. If the 18th day falls on a Saturday, Sunday, or legal holiday, then the 18-day period runs until 5:00 p.m. on the next day that is not a Saturday, Sunday, or legal holiday. A request is considered "filed" on the date it is received at the Board's office. If a hearing is not requested in the time and manner stated, this Summary Order becomes a final order subject to judicial review. A petition for judicial review should be directed to the above recipient.

The Board's designee who may receive service of a request for a hearing on behalf of the Board is:

David Fye, Executive Director
Behavioral Sciences Regulatory Board
700 SW Harrison, Suite 420
Topeka, Kansas 66603

NOTICE OF ADMINISTRATIVE RELIEF

In the event that you do not timely request a hearing, the above Order will become a final order the day following the 18th day referenced above (i.e., 19 calendar days following the date listed in the Certificate of Service below). Pursuant to K.S.A 77-529, a party may file with the Board a petition for reconsideration within 15 days from the date the Summary Proceeding Order becomes a final order. Such petition must state the specific grounds upon which relief is requested. The filing of a petition for reconsideration is not a prerequisite for seeking judicial review.

Pursuant to K.S.A. 77-528, a party may file, if applicable, a petition for stay of effectiveness of the order prior to the expiration of the time in which to file a petition for judicial review. The filing of a petition for a stay of effectiveness is not a prerequisite for seeking judicial review.

NOTICE OF JUDICIAL RELIEF

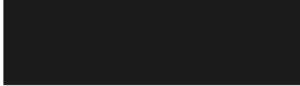
If a petition for reconsideration is not filed pursuant to K.S.A. 77-613, a party may file within 30 days from the date the Summary Proceeding Order becomes a final order a petition for judicial review with the appropriate district court as provided in the Kansas Judicial Review Act, K.S.A. 77-601 *et seq.*

The designee who may receive service of a petition for reconsideration, a petition for stay, or a petition for judicial review on behalf of the Board is:

David Fye, Executive Director
Behavioral Sciences Regulatory Board
Eisenhower State Office Building
700 SW Harrison, Suite 420
Topeka, Kansas 66603-3240

CERTIFICATE OF SERVICE

This is to certify that on this 30th day of January, 2024, a true and correct copy of the above and foregoing Summary Proceeding Order was placed in the U.S. mail, first-class postage prepaid, addressed to:

Franklin W. Horbelt


And by e-mail to:

Timothy D. Resner
Frieden & Forbes, LLP
1414 SW Ashworth Place, Suite 201
Topeka, KS 66604
tresner@fflawllp.com
Counsel for the Board of the Behavioral Sciences Regulatory Board



Staff,
Kansas Behavioral Sciences Regulatory Board

KANSAS BEHAVIORAL SCIENCES REGULATORY BOARD

Eisenhower State Office Building
700 SW Harrison, Suite 420
Topeka, Kansas 66603-3240

In the Matter of)
Franklin W. Horbelt)
)
Applicant for Licensure as a)
Professional Counselor)

Case No. 19-PC-002

FINAL ORDER AND PROTECTIVE ORDER

On January 13, 2020, the above-captioned matter came before the Kansas Behavioral Sciences Regulatory Board (Board) for a hearing on the application filed by Franklin W. Horbelt for licensure as a professional counselor.

After reviewing the Board's file and considering the evidence and arguments presented at the hearing, the Board makes the following findings of fact, conclusions of law, and orders.

Findings of Fact

Procedural History

1. On October 10, 2019, the Board issued a Summary Proceeding Order denying the application filed by Franklin W. Horbelt (Horbelt) for licensure as a professional counselor. Horbelt filed a timely request for a hearing.
2. The Board conducted the hearing on January 13, 2020. Exhibits 1, 2, 3, and 4 were admitted without objection. Horbelt testified in support of his application. The evidence from those exhibits and his testimony are set forth below.

Hearing

3. In May 2019, Horbelt received a Master of Science degree in clinical counseling from Emporia State University and filed an application with the Board for licensure as a professional counselor (LPC). On his application, Horbelt answered "yes" to the following question: "Have you ever been charged with or convicted of a felony or misdemeanor other than a traffic violation?"
4. In 1990, Horbelt was 18 years old and charged with two counts of aggravated criminal sodomy, a class B felony. The charges stemmed from an incident when Horbelt was caring for three children who were [REDACTED]. He saw them "playing doctor" and joined them. After the incident, Horbelt moved to Atlanta, Georgia,

with his mother, but decided he could not live with what he had done. Horbelt wanted the children to get help even though they had not told anyone what had happened. Horbelt turned himself in to law enforcement in Georgia even though he knew they would report the incident to the authorities in Kansas. This led to the filing of the felony charges.

5. Prior this incident, Horbelt had a troubled life. He had difficulty establishing relationships with others. His [REDACTED] him about two years earlier after his [REDACTED] and others in high school had taunted him because he was obese. His church instructed him that sexual desire was a sin.

6. In 1991, he entered a guilty plea to one count of indecent liberties with a child, a class C felony. At the time of sentencing, Horbelt had served 9 months in jail; the district court granted probation and released him to community corrections for supervision. He was placed in a residential facility for one year. Horbelt's probation conditions included [REDACTED] and maintaining employment.

7. Horbelt had difficulty finding and maintaining employment because he lacked transportation and support. At Horbelt's request in 1992, the court revoked his probation because he could not satisfy all of the probation conditions. While in prison, Horbelt attended [REDACTED]. Horbelt was granted parole in 1998. One of his parole conditions was to [REDACTED]. Horbelt received a discharge from his sentence in 2003.

8. Horbelt received an accounting degree and became a controller for a small manufacturer. However, he lost other jobs due to his conviction. Horbelt later opened a tea bar. As it became more successful, he feared the discovery of his past and having to close the teashop. Due to his fear, Horbelt later closed his tea bar, opened an online tea business, and sold other products online. While pursuing his online ventures, Horbelt still feared disclosure of his conviction and [REDACTED]. His fear came to fruition when he went to a bar where another individual recognized him and revealed his conviction. Horbelt became distraught because he felt the people in the bar did not need to know that part of his past. [REDACTED]. This experience made him realize his interest in counseling.

9. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. Since his release from prison, Horbelt has married and has a family.

10. Horbelt joined [REDACTED]
[REDACTED]
Horbelt told the faculty and several others of his felony conviction so they would be aware of it if any issues arose. Prior to entering graduate school, Horbelt understood his felony conviction could be an impediment to licensure. Although there were no restrictions

12. After Horbelt had request a hearing, the professional reference who was

13. The Board also received correspondence from a licensed clinical marriage

[REDACTED]

authorized to issue a license

trust. K.S.A. 65-5809(a)(2). Because he has applied for licensure as a professional counselor and has a felony conviction, the Board has jurisdiction over Horbelt and this matter.

15. Horbelt has a felony conviction. Thus, the issue is whether he has been sufficiently rehabilitated to warrant the public trust. Evidence of rehabilitation include the following factors:

- (a) the seriousness and the nature of the person's past crime(s);
- (b) the age, character, maturity, and experience of the person at the time of the commission of the crime(s);
- (c) the amount of time elapsed since the commission of the crime(s);
- (d) the conduct, work activity, and education of the person before and after the commission of the crime(s);
- (e) whether the crime was an isolated or recurring incident;
- (f) conditions of probation, parole, or post-release supervision;
- (g) discharge from probation, parole, or post-release supervision;
- (h) evidence of the person's rehabilitation or rehabilitative effort;
- (i) the demonstrated consciousness of the wrongful conduct and the disrepute that the conduct has brought the profession;
- (j) voluntary involvement in community service activities, and
- (k) all other evidence of the person's present fitness for a license.

16. Evidence of the above factors shows Horbelt committed an egregious sexual felony offense involving three minor children almost 30 years ago. At that time, he was an immature 18 year old who struggled with serious personal issues. While in prison and on parole, he [REDACTED] He has no other criminal convictions; thus, it was an isolated incident. Horbelt did not produce evidence of all of the conditions of his parole and probation, but he did acknowledge he had difficulty complying with the employment conditions, and as a result, had to serve his prison term. He was discharged from his sentence over 16 years ago. Horbelt's fear of others discovering his felony conviction and the trust issues it may raise shows he is conscious of his wrongful conduct and the disrepute it may bring to the profession.

17. Since his discharge from the criminal case, Horbelt has maintained employment, completed a master's degree in professional counseling, and started a

family. Horbelt's three references who recommended licensure were licensed professionals who knew him in his graduate counseling program. [REDACTED]

[REDACTED] While he has submitted evidence of rehabilitation, the extent of his rehabilitation must be sufficient to merit the public trust—especially the trust between a counselor and a client. Based upon the above, the Board hereby grants Horbelt's application for licensure as a professional counselor subject to the following terms and conditions.

(a) Horbelt shall be employed by an agency as a professional counselor; he cannot engage in private practice as a professional counselor. Upon employment as a licensed professional counselor, a licensed clinical professional counselor (LCPC) who the Board has approved as a supervisor for this Order, has a minimum of two (2) years in such clinical practice, and is not in a familial, subordinate, or other dual relationship with Horbelt shall supervise Horbelt's practice as a LPC. If a LCPC is not available to provide supervision under this order, Horbelt may be supervised by a Board-approved person who is licensed by the Board at the clinical level in their practice, has a minimum of two (2) years of clinical practice in their practice, and is not in a familial, subordinate, or other dual relationship with Horbelt.

(b) Horbelt will hold the license as a professional counselor with the supervision and conditions imposed herein for a minimum of twenty-four (24) months. Any period of time that Horbelt is not employed as a licensed professional counselor or engaged in the practice as a licensed professional counselor shall not count towards this requirement of supervised practice.

(c) During this supervised period, Horbelt and his supervisor shall have weekly one-hour, in-person supervision sessions. These sessions shall focus on decision-making, boundaries, and the ability to recognize personal issues that may influence his professional judgment.

(d) During this supervision period, Horbelt's practice supervisor shall provide the Board with written reports at the end of each three (3) month period of supervision. This report shall address topics required above in paragraph 18(c). If Horbelt's supervisor is not his employer, Horbelt's employer shall also provide the Board with written reports at the end of each three (3) month period of supervision that includes the information required above in paragraph number 18(c).

(e) During the supervision period under this Order, Horbelt shall not provide services to or engage in any therapy or counseling with a minor child.

(f) Horbelt shall notify the Board and his practice supervisor within seven (7) calendar days of any changes in his personal or professional status that would hinder or inhibit compliance with any of the terms and conditions of this Order. In such event, a Board member who is licensed as a professional counselor and serves on the Board's Professional Counselor Advisory Committee may modify or amend the terms or conditions of this Order that will still serve to protect the public. Any such modification or amendment of this Order must be in writing and signed by Horbelt and the Board member.

(g) Horbelt's practice supervisor and employer shall immediately notify the Board of their concerns if either has reason to believe that Horbelt has not complied with the terms and conditions of this Order, a modification or amendment of this Order, or the Professional Counselors Licensure Act, or the regulations governing Professional Counselors.

(h) Horbelt shall bear any expense of supervision and all other costs incurred in satisfying the terms of this Consent Agreement and Order.

(i) Horbelt shall provide to his practice supervisor and employer a copy of this Order and any modification or amendment of this Order that the Board signed and approved. Horbelt's practice supervisor and employer must agree in writing to abide by the terms of this Order and any modification or amendment of this Order that the Board signed and approved. Horbelt's practice supervisor and employer shall send their signed written agreement(s) to the Board within seven (7) calendar days of becoming Horbelt's practice supervisor or employer under this Order or any modification or amendment of this Order that the Board signed and approved.

(j) Horbelt shall obey all federal, state, and local laws, including the Professional Counselors Licensure Act and the regulations governing Professional Counselors.

(k) At the end of the supervised practice period, Horbelt's practice supervisor and employer must submit a written report to the Board addressing whether Horbelt poses a risk to the public in the practice of professional counseling without supervision under this Order. If Horbelt's practice supervisor responds unfavorably, the Board may continue Horbelt's licensure as a professional counselor on the above terms and conditions, as well as any other terms and conditions that the Board deems appropriate based upon the practice supervisor's report for an additional twenty-four (24) months or refuse to re-issue a license to Horbelt. If Horbelt's practice supervisor responds favorably, the Board shall license Horbelt as a professional counselor without the terms and conditions imposed herein.

(l) If he fails to find employment as a professional counselor and obtain a Board-approved practice supervisor within two (2) years from the date on the Certificate of Service below, Horbelt must submit a new application for licensure as a professional counselor.

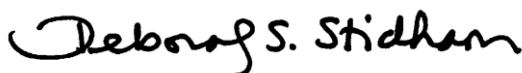
(m) Horbelt must successfully pass the examination for licensure as a professional counselor pursuant to the Professional Counselors Licensure Act.

Order

After consideration of the above findings and fact and conclusions of law, it is the decision and order of the Board that the application for licensure as a professional counselor filed by Franklin W. Horbelt shall be granted subject to the above terms and conditions. It is the further decision and order of the Board that a protective shall be entered to protect all confidential medical records of Franklin W. Horbelt from disclosure and use outside of this proceeding because state or federal law restricts its disclosure and use.

IT IS SO ORDERED.

Kansas Behavioral Sciences Regulatory Board



Deborah Stidham, President of the Board
On Behalf of the Presiding Officers

Notice of Administrative Relief

The above Order is a final order. Pursuant to K.S.A. 2018 Supp. 77-529, a party may file with the Board a petition for reconsideration within 15 days from the date noted below in the Certificate of Service. Such petition must state the specific grounds upon which relief is requested. The filing of a petition for reconsideration is not a prerequisite for seeking judicial review.

Pursuant to K.S.A. 2018 Supp. 77-528, a party may file, if applicable, a petition for stay of effectiveness of the order prior to the expiration of the time in which to file a petition for judicial review. The filing of a petition for a stay of effectiveness is not a prerequisite for seeking judicial review.

Notice of Judicial Relief

If a petition for reconsideration is not filed pursuant to K.S.A. 77-613, a party may file within 30 days from the date noted below in the Certificate of Service a petition for judicial review with the appropriate district court as provided in the Kansas Judicial Review Act, K.S.A. 77-601 *et seq.*

The designee who may receive service of a petition for reconsideration, a petition for stay, or a petition for judicial review on behalf of the Board is:

Max L. Foster, Executive Director
Behavioral Sciences Regulatory Board
700 SW Harrison, Suite 420
Topeka, Kansas 66603

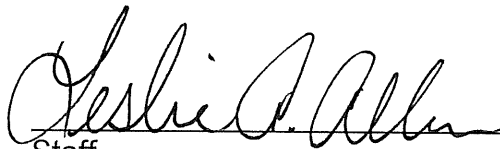
Certificate of Service

This is to certify that on the 18th day of February 2020 a copy of the above and foregoing Order, Notice of Administrative Relief, and Notice of Judicial Relief were placed in the U.S. mail, first-class postage prepaid addressed to the person listed below:

Franklin W. Horbelt

The undersigned further certifies a true and correct copy of the above and foregoing Order, Notice of Administrative Relief, and Notice of Judicial Relief was delivered by interoffice mail to:

Jane Weiler, Assistant Attorney General
Civil Litigation Division
Office of the Attorney General
Memorial Building
120 SW 10th Avenue
Topeka, Kansas 66612



Staff,
Behavioral Sciences Regulatory Board